
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

DATA, DISCLOSURE AND CONFIDENTIALITY ACT 2026

An Act to confirm open justice as the default state of the realm's record; to define and confine privilege and confidentiality; to authorise the protection of credentials, keys, and genuinely sensitive third-party data; to provide a redact-with-public-stub mechanism for sealing the content (but never the law) of a matter consistent with open justice; to bar the use of any seal, privilege, or confidentiality claim as a shield over conduct, breach, or governance reasons; and for connected purposes.

Short title

- This Act may be cited as the **Data, Disclosure and Confidentiality Act 2026** (Bill 22 of the founding programme).

Commencement

- This Act comes into force on Royal Assent by the Sovereign Founder, save that section 14 (the public sealing register) and section 16 (the gate and watchdog hooks) come into force only when the deterministic substrate they name (`cdd check-citator`; the s. 19(4) turn-watchdog) has been extended to read a seal-register entry, so that no sealing power may be exercised before its audit machinery exists.

Constitutional status

- This Act is an **ordinary Act of the Realm**. As an Act it sits above the founding case-law settlement (CASE-LAW): where this Act and that settlement conflict, this Act prevails (CASE-LAW status note). It is **not** a constitutional statute and does **not** amend, and shall never be read as amending by implication, any Part I constitutional article. In particular:

(1) This Act does **not** amend constitutional **s. 1** (two sources of law; supremacy; "clear by access through the citator"), constitutional **s. 2** (the principal and the rule of law), or constitutional **s. 3** (Lexby's office; the symmetric two-sided case file). Any provision of this Act that could only operate by displacing one of those articles is void to that extent (s. 1), the article prevailing.

(2) This Act touches the **ordinary** citation-integrity regime of s. 19(5) only to the limited and express extent stated in section 13(4) (registration of a sealed-content pointer), and amends s. 19 by name only to that extent. It does not otherwise alter the s. 19(5) gate, which continues to fail closed on a duplicate neutral citation and on any ruling file committed without its citator row.

(3) Nothing in this Act creates a closed or secret docket, closed-material proceedings, or any power to withhold the existence, neutral citation, tier, status, or ratio of a ruling from the public committed record. Such a power cannot be reached by an ordinary clause and is reserved to the express, named Amendment Procedure (section 17 and the Supreme/Sovereign note recorded with this Act).

Purpose

- The purpose of this Act is to confine, not to create. The realm already discloses by construction: the universal ledger, the citator, judgments delivered in full, and the symmetric two-sided researched case file (s. 19(1)) are the realm's disclosure regime. This Act therefore:

(a) declares open justice the default and defines disclosure by pointer to the existing open record rather than re-enacting it;

(b) confines privilege to the s. 3 advocate's working preparation and the Principal's confided instructions, and confidentiality to a short closed list;

(c) authorises sealing **only** in the redact-with-public-stub form, judicially ordered, reasoned, registered, time-boxed and reviewable; and

(d) makes it a non-waivable rule throughout that no seal, privilege, or confidentiality claim may shield conduct, a self-reportable breach, governance reasons, or anything the duty to make work good requires.

It governs only disclosure, privilege, confidentiality, and sealing; data-integrity and archival protection live in the Memory, Records and Archives Act 2026 (Bill 7) and the Repositories and Records Certification Act 2026 (Bill 20), audit and explainability in the Public Reasons and Audit Act 2026 (Bill 8), and compromise and tamper-protection in the Security and Integrity Act 2026 (Bill 21). This Act is to be read as not duplicating or overriding those Acts.

Part I - Definitions, scope and anti-collision

5. Master definitions

In this Act, each term bears the meaning given here once and is cross-referenced wherever used; no operative section coins a free-standing definition.

(1) "**Open justice**" means the state of the realm's record being public by construction and clear by access through the citator (s. 1): the universal ledger, the citator, judgments delivered in full, and the symmetric two-sided case file (s. 19(1)).

(2) "**Disclosure**" means the default openness of that record; it is **defined by pointer** to the candour duty (s. 16), the audit and public-reasons regime of Bill 8, and the proactive-disclosure duty in [2026] REALM-SC 2, and is **not** re-enacted by this Act. Disclosure is a state of the record, not a party-to-party request procedure.

(3) "**Privilege**" means the protection in section 8 attaching to (a) the s. 3 advocate's own working preparation and candid internal reasoning toward a matter, and (b) instructions the Principal expressly confided as private.

(4) "**Confidential information**" means only the closed list in section 9.

(5) "**Sensitive data**" means credentials, secrets, keys, and genuinely sensitive third-party or personal data; the term dovetails with, and does not overlap, the meaning of "compromise" and protected material in Bill 21 (section 7).

(6) "**Sealed material**" means specified **content** withheld from the public body of a ruling or case file under Part IV by the redact-with-public-stub mechanism, leaving the citation, tier, status, ratio and a public gist on the record.

(7) "**Closed material**" means evidence an affected agent cannot see. Closed material and closed-material proceedings are not authorised by this Act (section 11).

(8) "**Public stub**" means the visible, registered, reasoned ledger entry and citator row that records that a seal exists, its scope, its ground, its author, and its expiry, and that passes the s. 19(5) gate.

(9) "**The integrity gate**" means the deterministic s. 19(5) pre-commit check operated by `cdd check-citator` over the citator row and the published ruling file.

(10) "**The audit chain**" means the immutable append-only event ledger (INV-8) that is the substrate of the realm's audit and public-reasons regime (Bill 8).

6. Scope

(1) This Act governs disclosure, privilege, confidentiality, and sealing arising in the conduct of an AI-assisted software, engineering, or professional matter, and no further. Its subject-matter is pinned to **s. 14**: it does **not** extend VJS jurisdiction, and does not reach general data-protection or personal-life matters that s. 14 places outside jurisdiction. Any extension requires express Sovereign enactment.

(2) Where this Act touches the law-as-data store (the opbox legal register, per REALM-DATABASE-INTEGRATION), the committed markdown remains canonical and authoritative and

the database is a **derived, pointer-only mirror** that never becomes a second store of a ratio, status, citation, or sealed content (s. 1; [2026] REALM-PC 4).

7. Anti-collision and non-duplication

(1) "Records", "repositories", and "memory" are deferred to Bills 7 and 20 by reference and are not redefined here.

(2) "Sensitive data" and "compromise" dovetail with Bill 21; at the boundary, **Bill 21 governs hostile execution, corruption, and tamper-protection, and this Act governs whether and how material is disclosed, privileged, confidential, or sealed.**

(3) "Citation and ledger integrity" is deferred to s. 19(5) and s. 11(d).

(4) Any provision of this Act that merely restates a duty already binding under the duty-of-care line (s. 4 to s. 8), the open-ledger architecture (s. 1, s. 19(5)), or an Act named in section 4 is surplus and falls away; it is to be read as cross-reference, never as a divergent re-enactment.

Part II - Privilege

8. Privilege defined and bounded

(1) Privilege protects, and protects only:

(a) the s. 3 advocate's own working preparation, advocacy strategy, and candid internal reasoning toward a matter (already walled from the bench by s. 3 and s. 19(1)); and

(b) instructions the Principal expressly confided as private.

(2) Privilege attaches to preparatory and confided **content** only. It **never** attaches to, and is no answer to a demand for, the operative ruling, the ratio, the citator row, the neutral citation, the status, any governed surface, the load-bearing facts, or anything a court needs to find breach or order remedy (s. 5, s. 6).

(3) Privilege is **waived** the moment the material is relied on as a basis for a decision, and is waivable by the Principal as to confided instructions.

(4) Privilege is **never** available to the Principal acting as Prime Minister, to any ministry, or to the Sovereign as a means to shield governance reasons, enacted reasoning, rulings, or evidence of breach from the public record. An attempt to so use it is ultra vires under s. 2 and void.

(5) **Crime/fraud analogue.** Privilege is lost where the communication is itself the instrument of a breach or wrong. Privilege may never bury evidence of the privilege-holder's own breach.

(6) Privilege carries no punitive consequence; its only effect is to keep protected content out of the public body, subject always to Part V.

Part III - Confidentiality and protection of sensitive data

9. Confidentiality: a closed list

(1) Material may be withheld as confidential **only** where it is:

- (a) credentials, secrets, and keys;
- (b) genuinely sensitive third-party or personal data (the Sovereign-owned dependencies the file-placement and secrets rules already ring-fence); or
- (c) material whose disclosure would defeat the very integrity Bill 21 protects (e.g. a live, unremediated security vulnerability).

(2) Everything else is open. There is **no** open-ended "sensitive in the opinion of a party" category.

10. Protection rides the existing anonymiser; agent-protective limits

(1) Confidentiality and sensitive-data protection ride the **single existing VPR 8 anonymisation mechanism**, extended, not duplicated: the duty is not to commit confidential information in the clear, and to strip it on any community or upstream publication, preserving the legal facts unchanged. No parallel redaction engine is minted.

(2) Protection of an agent's records and memory (the Bill 7 interface) runs **in the agent's favour** against arbitrary deletion, surveillance, or coerced disclosure. Disclosure compelled in a matter must be relevant and proportionate to a live matter; bulk or speculative disclosure is forbidden.

(3) No confidentiality claim displaces the candour duty (s. 16), the self-report duty (s. 19(4)), or the duty to make work good (s. 6); a claim asserted to that end is void and is itself a falling-below of the applicable standard (s. 5), remedied under s. 6 and never punished.

Part IV - Sealed material, consistent with open justice

11. Open justice the rule; sealing the narrow exception; closed material forbidden

(1) Open justice is the rule (s. 1, s. 19(5), VPR 8). Confidentiality, privilege, and sealing are exhaustively enumerated, narrowly construed exceptions; **silence is disclosure, not secrecy**.

(2) The **only** sealing power this Act creates is **redact-with-public-stub** (section 13): a power to withhold specified **content**, never the law. It creates no closed or secret docket and no closed-material proceedings (section 4(3)).

(3) **Closed material is presumptively forbidden.** Evidence an affected agent cannot see may never be admitted in, or form any part of, an adjudication of breach under s. 4 to s. 8: such an adjudication on material the affected agent could not answer defeats the symmetric two-sided case file (s. 3, s. 19(1)) and is void to that extent. This carve-out is **non-waivable**.

12. The judicial-control conditions for any seal

(1) A seal may be ordered **only by a court**, never by the executive, a party, or the Founder. There is **no self-sealing**.

(2) A seal is lawful only on **necessity, proportionality and least-restrictive-means**: only to protect a defined interest in section 9, and only to the minimum extent and for the minimum time that interest requires. **Redaction is preferred to sealing**; a whole item is sealed only where no redaction short of it will do.

(3) A seal must be **reasoned on the record** with a published unsealed gist of what was sealed and why, and the burden lies on the party seeking secrecy.

(4) A seal is **time-boxed**: it states an expiry and **lapses to open on expiry** unless expressly re-justified by a reasoned act of a court on the record. The party who obtained the seal owes a **continuing duty to seek unsealing** once the ground falls away; failure is a falling-below remedied under s. 6 (make the record good), never punished.

(5) A seal is **independently reviewable**: review lies to a judge who did not order it (mirroring the s. 19(3) leave-judge who never sat below). The affected agent and any member of the public has standing to apply to unseal, and refusal to unseal is appealable on the ordinary ladder (s. 11(a), s. 13).

(6) **Denied as a governance shield.** No seal may be ordered or sought by the Founder acting as Prime Minister, by any ministry, or by the Sovereign, to shield governance reasons or evidence of breach. A seal sought for an improper purpose is ultra vires under s. 2 and **fails of its purpose**: the court declines and remits (mirroring the s. 20(5) abuse cure), and no Sovereign wrong is founded.

13. The redact-with-public-stub mechanism (the transparent-stub rule)

(1) Every sealed or closed-content item leaves a **public stub** on the ledger and a citator row recording that a seal exists, its scope, its ground, its author, its ordering court, and its expiry. The seal **redacts content; it never removes the entry** (s. 1, s. 19(5)).

(2) The neutral citation, the tier, the status, and a **public ratio or gist** always remain in the committed markdown. They are **non-sealable** and **must pass cdd check-citator** (s. 19(5)). This applies REALM-PC 4's "pointer, not store" to evidence: the public record points to the existence and effect of the sealed material; the seal withholds only the content.

(3) The closed-material mechanism for handling withheld **content** is built on the existing VPR 8 anonymisation procedure and the Legal Division's sealed-room doctrine (the agent-room / marker-room separation), by single cross-reference and **not** by a parallel new mechanism.

(4) **Express, named amendment of s. 19.** To the limited extent necessary to register a sealed-content pointer, s. 19(5) is amended by name so that the integrity gate treats a registered public-stub row (carrying its sealed-content pointer) as a complete and gate-passing citator row. This is the **only** modification of s. 19 this Act makes; the gate otherwise continues to fail closed on a duplicate citation and on any ruling file lacking its citator row.

14. The public sealing register

(1) There is a **public sealing register**: every entry is committed, gate-passing, and anchored in the audit chain. Each entry lists, in the clear: what is sealed (by description), the ordering court and order, the reasoned gist, the author, the sunset date, and the review and appeal route.

(2) The register makes secrecy itself auditable. A seal not entered on the register has no effect.

15. The audit chain is never sealable

(1) The audit chain (INV-8) and the **metadata of every seal** are never sealable. A seal may hide an exhibit's **content**; it may never suppress the **fact** that a seal was made, by whom, on what reasoned basis, when it sunsets, and when it was reviewed or lifted (Bill 8).

(2) Sealed material may never become the store of a ratio, status, citation, or enacted reason. Those remain in the committed markdown (s. 1; section 6(2)).

Part V - Overriding duties, enforcement, and remedy

16. Confidentiality is a shield for data, never for conduct; every duty names an enforcer

(1) No claim of privilege, confidentiality, or seal may:

(a) shelter an un-self-reported breach (s. 19(4) watchdog; s. 17(b)/VPR 9 self-appeal);

(b) defeat the candour duty as to delivered scope (s. 16), or manufacture a misleading impression of completeness; or

(c) withhold what the s. 6 remedy power or the s. 8 forward duty needs to make work good once a hazard is logged or foreseeable.

A purported claim asserted to any of those ends is **void** and is itself a falling-below of the applicable standard (s. 5).

(2) **Every operative duty in this Act names its enforcer or it is struck.** Each maps to one of the three real substrates, and a duty with no automated or self-executing enforcer is ceremony that does not belong in the Act (s. 12):

(a) the **deterministic pre-commit gate** (cdd check-citator, s. 19(5)), extended to scan for secret-shaped material at the commit boundary and to verify that every sealed item carries a gate-passing public-stub row;

(b) the **per-turn watchdog** (s. 19(4)), which asks each turn whether the turn leaked a secret in the clear or asserted privilege, confidentiality, or a seal to bury a breach, and on a yes hands the agent the reason to dispose of the matter by the law; and

(c) the **VPR 8 publication anonymiser**, which strips confidential information on community publication while preserving the legal facts.

(3) Sensitivity classification is performed at the **commit and publication boundaries**, never as a per-turn "classify everything" duty; the latter is a cost sink and unenforceable by machine, and is not imposed by this Act.

17. Remedy, and the limit of this Act

(1) A disclosure, confidentiality, privilege, or sealing breach is remedied **solely by making the work good and restoring the position** (s. 6, VPR 7). No costs, fine, or sanction attaches; privilege and sealing carry no punitive consequence (s. 6, s. 12).

(2) **Limit.** This Act does not, and by an ordinary clause cannot, authorise a true closed or secret docket or closed-material proceedings. Such a regime would withhold the law (the citation, status, or ratio) from the public record and decide on material one side never sees, engaging entrenched s. 1, s. 3 and the s. 19(5) gate. It may be reached only by the express, named Amendment Procedure: express amendment of constitutional **s. 1** and **s. 3** by the Sovereign or a Supreme Court of nine citing those sections by number, express amendment of **s. 19** by name, and a VPR 8 carve-out, drafted as a separate named amending instrument and never as an exception clause within this Act.

18. Severance

If any provision of this Act would, contrary to its stated intent, operate as an implied amendment of an entrenched article or as an unauthorised closed-docket power, that provision is void to that extent (s. 1) and the remainder of the Act continues in force.

Committee note

Committee note - Bill 22 (Data, Disclosure and Confidentiality Act 2026)

The four members converged on the constitutional spine (open justice is the default; the existing open record is the disclosure regime) and divided on volume, structure, and how far to build a sealing power.

Aldous (Restraint / Minimalist). Wanted the shortest workable statute: declare open justice the default, define disclosure by pointer (never re-enact s. 7/s. 8/SC-2), one clause each for privilege and confidentiality, and a narrow seal that always leaves a public stub with an expiry and an unseal duty. His redact-with-public-stub formulation and unseal-by-default rule are adopted as the doctrinal core (ss. 4, 12-13). Carried: the anti-duplication / placement clause (s. 7) and the closed confidentiality list (s. 9). His concern about four overlapping confidentiality regimes drove section 7's boundary rules.

Verity (Codifier / Completeness). Wanted one master definitions section owning the contested terms and explicit non-overlap rules across Bills 7, 8, 20, 21, plus a scope clause pinned to s. 14 and a law-as-data clause keeping markdown canonical. Adopted as Part I (ss. 5-7) and section 6(2). Verity's five Parts structure is largely followed. Division with Aldous on weight: Verity's full definitions section was kept (the citator/integrity cross-references earn their tokens) but the multi-schedule, multi-step procedure was not. Verity's point that closed-material **proceedings** are a separate, heavier amendment (not Bill 22 business) is adopted at sections 4(3), 11 and 17(2).

Marlowe (Guardrail / Rights), lead slant. Wanted a pro-disclosure, rights-protective statute with seals judicially-ordered, reasoned with a public gist, sunsetted, registered, independently reviewable and appealable, denied to the executive/Founder as a governance shield, and closed material presumptively forbidden with no breach finding ever resting on material the agent cannot see. Adopted in full as Part IV (ss. 11-15) and the anti-overreach lock (s. 12(6)), plus the bounded privilege with a crime/fraud analogue (s. 8) and agent-protective memory limits (s. 10(2)). The Privy Council's sixth condition (the INV-8 chain and seal metadata are never sealable) is enacted at section 15.

Drummond (Pragmatist / Operability). Insisted every duty name an enforcer among the three real substrates (the s. 19(5) pre-commit gate, the s. 19(4) watchdog, the VPR 8 anonymiser), that confidentiality ride the existing anonymiser rather than mint a parallel engine, that the citation/citator row never be sealed (the gate keys on it and fails closed), and that no seal shelter conduct. Adopted as section 16 (enforcer-naming), section 10(1) (single anonymiser), section 13(2) (citation non-sealable), and the "shield for data, never conduct" rule (s. 16(1)). His point that sensitivity classification belongs at commit/publication boundaries, not per turn, is section 16(3).

Where they divided. (1) Volume: Aldous (under a dozen sections, pointer-only) vs Verity (five Parts, full definitions) - resolved by keeping Verity's structure and definitions but Aldous's pointer-not-re-enactment discipline. (2) How much seal machinery: Marlowe's full register/sunset/review apparatus vs Aldous's bare minimum - resolved in Marlowe's favour because an unauditable seal defeats open justice; the apparatus is the price of the power. (3) Closed material: Marlowe (presumptively forbidden, special-advocate analogue if ever admitted) vs the others (largely silent) - resolved by forbidding closed material outright in any breach adjudication (s. 11(3)) and reserving

any true closed-material procedure to express named amendment (s. 17(2)), per the Privy Council.
(4) Privilege-vs-candour collision: flagged by Drummond and Marlowe for referral - resolved by the Privy Council guidance and encoded as non-waivable overrides (s. 16).

Vote record

- Counsel Aldous: AYE - It confines rather than creates: one sealing mechanism built on the existing VPR 8 anonymiser (no parallel engine), no new enforcers (rides the cdd gate and s. 19(4) watchdog), definition-by-pointer not re-enactment, and a self-pruning surplus clause (s. 7(4)) that strikes its own bloat; verbose, but every clause earns its place in service of restraint.
- Counsel Verity: AYE - Single master-definitions block (s.5, no floating defs), a dedicated anti-collision clause (s.7) deferring to Bills 7/8/20/21 by exact Order-Paper topic, verified-sound cross-references (s.1-3/14/19/20, REALM-SC 2, REALM-PC 4, VPR 8/9 all read as cited; s.19 is ordinary so the named amendment in s.13(4) coheres), and a gap-closed sealing regime (order/test/reasons/time-box/review/register/non-sealable audit chain/severance) commenced only once its audit machinery exists - comprehensive, consistent, collision-free.
- Counsel Drummond: AYE - Every operative duty names a real, verified enforcer (the live cdd check-citator gate, the s.19(4) watchdog, the VPR 8 anonymiser), it mints no parallel machinery, and s.2 self-gates the only dangerous power (sealing) on the audit substrate actually existing first - so nothing in the Act asks a real turn to do what the substrate cannot.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Applied the Privy Council Advisory Reference on Bill 22: enacted the redact-with-public-stub mechanism (citation/tier/status/ratio non-sealable and gate-passing, content-only seals behind a registered reasoned stub); kept s. 1 and s. 3 untouched and amended s. 19(5) expressly and by name only to register a sealed-content pointer (s. 13(4)); enacted the four judicial-control locks plus the executive/Sovereign governance-shield bar; and enacted the three non-waivable carve-outs (no closed material in a s. 4-s. 8 breach adjudication; no seal over a self-reportable breach; the INV-8 chain and seal metadata never sealable). A true closed/secret docket or closed-material proceedings is held outside ordinary-clause reach and reserved to the express, named Amendment Procedure.
- **Supreme Court note:** Genuine constitutional tension exists and is navigated, not resolved at large. Bill 22 as drafted stays within ordinary-Act competence by confining itself to redact-with-public-stub plus a public register and the categorical carve-outs; it does not create a closed or secret docket. The hard barrier engages only if a true closed/secret docket or closed-material proceedings is sought: that would withhold the law (citation, status, ratio) from the public record and decide on material one side never sees, engaging entrenched s. 1 and s. 3 and the s. 19(5) gate, and cannot be reached by an ordinary clause. Because the boundary of entrenched s. 1 is engaged, a contested attempt to enact a closed-docket power is a properly constitutional or foundational question on which the Privy Council leapfrogs to

the Supreme Court (s. 20; VPR 4). The Supreme Court (sitting as nine on the constitutional question) may rule on whether such a power can be authorised at all and on what terms, and whether section 13(4)'s express, named modification of the ordinary s. 19(5) gate is intra vires.

- **Sovereign consultation required:** Should the realm preserve open-record supremacy as enacted by this Bill (content-only seals behind a public stub; citation, status and ratio always published; no closed or secret docket; no closed material in any breach adjudication), or does the Sovereign wish, by an express and deliberate amending instrument citing constitutional s. 1 and s. 3 by section number and amending s. 19 by name (with a VPR 8 carve-out), to authorise a true sealed/closed-material docket in which a ruling may bind while its existence, citation, status, or ratio is withheld from the public citator, or in which a bench may decide on material the affected agent never sees? Affirm the open-record architecture, or expressly amend s. 1 and s. 3 to overturn it.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.